

HOUSE No. 4108

The Commonwealth of Massachusetts

PRESENTED BY:

Kate Donaghue

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the death of a candidate running for public office.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>1/15/2025</i>

HOUSE No. 4108

By Representative Donaghue of Westborough, a petition (accompanied by bill, House, No. 4108) of Kate Donaghue relative to the death of candidates running for public office. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the death of a candidate running for public office.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 14 of chapter 53 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 32, the word “compromising” and
3 inserting in place thereof the following word:- comprising.

4 SECTION 2. Said chapter 53 is hereby further amended by inserting after section 14 the
5 following section:-

6 Section 14A. If a candidate for the office of state representative or the office of state
7 senator of the general court dies after the primary election and the vacancy has not been filled
8 pursuant to section 14 and the candidate receives the most votes in the general election then it
9 shall be a failure to elect and an election shall be held to fill the vacancy pursuant to section 147
10 of chapter 54.